



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 17, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202106288 regarding Police Officer Genesis Perez-Vilomar, Tax No. 965410 (DADS No. 2022-27334) and Police Officer David Guzman, Tax No. 961803 (DADS No. 2022-27335)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that neither officer committed actionable misconduct in this case. On July 18, 2021, Police Officer Perez-Vilomar and Police Officer Guzman responded to the scene where a male allegedly used a knife to menace several residents of an apartment building. Numerous complainants greeted the officers and directed them to a particular apartment where the suspect resided.

Once at the suspect's apartment, the officers observed the suspect through an open apartment door. The suspect attempted to close the apartment door, but pursuant to her law enforcement function, Police Officer Perez-Vilomar prevented the door from being closed. Police Officer Perez-Vilomar, Police Officer Guzman, and several other officers then entered the suspect's apartment and placed him under arrest. Numerous Body-Worn Cameras captured the interactions between the officers and the suspect.

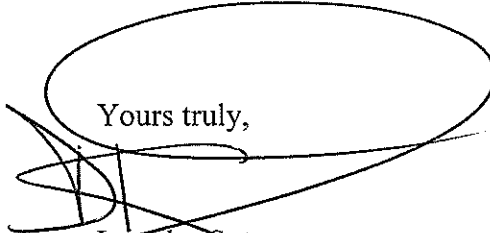
While inside the apartment, the officers noticed that the suspect was barefoot. Police Officer Guzman then entered the suspect's bedroom and retrieved footwear for the barefoot suspect. Police Officer Guzman did not search the suspect's bedroom; rather, he merely entered the bedroom, retrieved a box that contained footwear, and then exited the bedroom. Police Officer Guzman did not open the footwear box until after he exited the bedroom and was again in the presence of the barefoot suspect.

The sole reason why Police Officer Perez-Vilomar and Police Officer Guzman entered the suspect's residence was in furtherance of their law enforcement function. The suspect had moments earlier allegedly menaced several people with a knife. He then attempted to close his apartment door and barricade himself therein. The officers wanted to ensure that the suspect did not harm himself with the same knife he allegedly used to threaten others.

Similarly, Police Officer Guzman entered the suspect's bedroom in pursuit of his caretaking function as a law enforcement officer. The suspect was barefoot and Police Officer Guzman, in an effort to care for the suspect, entered the bedroom and retrieved footwear so that the suspect would not have to walk barefoot. There was no malicious intent to search the suspect's bedroom as evident by the lack of any search of said bedroom.

Therefore, based on the foregoing, Police Officer Perez-Vilomar will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Improper Entry) and Police Officer Guzman will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Improper Search).

Yours truly,


Lourdes Soto

 Deputy Chief
Commanding Officer
Police Commissioner's Office